PERFORMER AGREEMENT

PERFORMER

LEGAL NAME _____ STAGE NAME _____

EMAIL _____ PHONE _____ GST NO. (IF ANY) _____

ADDRESS _____

BANK ACCOUNT NAME _____ BANK ACCOUNT NUMBER _____

BOOKING DETAILS

EVENT _____ DATE _____

VENUE _____

SET TIME _____ SET LENGTH _____ ARRIVE BY _____ GUEST LIST PLACES _____

FEE (NZD) _____ GST INCLUDED (Y / N) _____ ATMOS CONTACT (NAME AND PHONE) _____

ANYTHING ELSE AGREED (EQUIPMENT, TRAVEL, EXTRAS) _____

This agreement is between Atmos Media ("Atmos", "we", "us") and the performer named above ("you"). It is made up of the performer and booking details above and the terms below.

01

THE BOOKING

1.1 You agree to perform at the event, on the date and at the set time in the booking details, for the full set length.

1.2 Set times can move as a line-up comes together. We will tell you about any change as early as we can, and you agree to reasonable changes, including on the night.

1.3 You will perform personally. You may not send someone in your place, or add another performer to your set, unless we agree in writing first.

1.4 You are an independent contractor. Nothing in this agreement makes you our employee, partner or agent.

02 ARRIVAL AND YOUR SET

2.1 **You must be at the venue, checked in with the Atmos event manager and ready to play, at least 30 minutes before your set time.**

2.2 If you are running late, call or message your Atmos contact straight away.

2.3 Start and finish on time, and hand over cleanly to the next performer.

2.4 If you arrive late or are not ready at your set time, we may shorten, move or cancel your set and reduce your fee to match the time you actually played. If you do not turn up, no fee is payable.

03 EQUIPMENT AND MUSIC

3.1 We provide the sound system and the standard DJ booth set-up for the event. Tell us at least 7 days before the event if you need anything else. We will try to help, but we only promise equipment we have confirmed in writing.

3.2 **DJs must bring their music on USB, plus at least one spare USB as a backup.** Both must hold your full set in a format the booth players can read.

3.3 Bring your own headphones. Anything else you bring, such as a controller, laptop or instrument, is yours to look after and stays at your own risk.

3.4 Treat the equipment at the event with care. Keep drinks off and away from the booth, and do not unplug or reconfigure anything without the OK of our event manager or sound technician.

3.5 Follow directions from our event manager or sound technician on volume, and keep the mixer out of the red.

3.6 If equipment at the event is damaged because of your negligence or misuse, you must pay the reasonable cost of repairing or replacing it. We may deduct that cost from your fee.

04 PAYMENT

4.1 **We will pay your fee within 14 days of your set time,** by bank transfer to the account in the performer details.

4.2 If we do not have correct bank details by your set time, the 14 days run from the day we receive them.

4.3 The fee is the total amount payable for the performance. It covers your preparation, travel, accommodation and other costs unless the booking details say otherwise.

4.4 If you are registered for GST, give us your GST number and send us a tax invoice. GST is added to the fee only if the booking details say it is not included.

4.5 You are responsible for your own income tax, ACC levies and other costs of working for yourself. If the law requires us to deduct withholding tax from your fee, we will deduct it and pay it to Inland Revenue.

05 CANCELLATION

5.1 If you can no longer perform, tell us as soon as you know, and at least 14 days before the event wherever possible. No fee is payable for a set you do not play.

5.2 If we cancel your set less than 7 days before the event for a reason within our control, we will pay you 50% of the fee. If we cancel earlier than that, no fee is payable.

5.3 If the event is cancelled, cut short or postponed for a reason outside our control, such as weather, venue closure, power failure, illness, or a licensing, safety or government direction, neither of us is liable to the other and no fee is payable for a set that was not played. We will try to book you for the new date.

5.4 We may cancel your set without payment if you seriously breach this agreement.

06 CONDUCT AND SAFETY

6.1 Treat staff, other performers and guests with respect. We do not tolerate harassment, discrimination, violence or threats.

6.2 Follow the venue's rules, the conditions of its alcohol licence, and every reasonable direction from our event manager, venue staff and security, including on health and safety.

6.3 You must be fit to perform. Do not perform so affected by alcohol or anything else that it harms your set or anyone's safety.

6.4 Most of our events are R18. Bring valid photo ID, and make sure your guests do too.

6.5 Tell us straight away about any accident, injury, hazard or damage you see or are involved in.

6.6 If you breach this section we may stop your set or ask you to leave, and we may reduce or withhold your fee.

07 PROMOTION AND RECORDINGS

7.1 You allow us to use your name, stage name, likeness, logo, biography and any photos you give us to promote the event and Atmos, before and after the event, on any channel.

7.2 You confirm you have the right to give us the promotional material you send, and that our using it will not infringe anyone else's rights.

7.3 We photograph, film and record our events, including sets. You agree that we may record your performance, publish the photos, video and audio on our website, social and streaming channels, and use them to promote Atmos, without further payment. We will credit you wherever we reasonably can.

7.4 We own the recordings we make. You keep all rights in your own original music, name and brand. If you would like something we have published changed or taken down, ask us and we will work with you in good faith.

7.5 Please do not announce the booking or the line-up before we do. Once it is announced, we would appreciate you sharing the event on your own channels.

08 GUESTS

8.1 Guest list places are limited to the number in the booking details. Send the names to your Atmos contact at least 24 hours before doors open.

8.2 Your guests come in under the same entry conditions as everyone else, and may be refused entry or asked to leave on the same basis.

09 LIABILITY

9.1 You are responsible for your own equipment and belongings. We are not liable for their loss, theft or damage unless our negligence caused it.

9.2 You are responsible for loss or damage you cause through negligence, wilful misconduct or a breach of this agreement.

9.3 Neither of us is liable to the other for indirect or consequential loss, or for loss of profit. Our total liability to you under this agreement is limited to the fee.

9.4 Nothing in this agreement limits liability that cannot be limited by law.

9.5 We recommend you hold your own insurance for your equipment and for public liability.

10 GENERAL

10.1 This agreement is the whole agreement between us about the booking and replaces anything said or written earlier.

10.2 Changes are valid only if agreed in writing. An email or message between you and your Atmos contact counts as writing.

10.3 Keep your fee and the terms of the booking confidential, other than from your advisers or where the law requires disclosure.

10.4 We hold your details to run the booking, pay you and keep our records, as set out in our privacy policy at atmosmedia.co.nz/legal/privacy.

10.5 This agreement may be signed electronically and in separate copies.

10.6 If we disagree about anything in this agreement, we will both try to sort it out by talking first. New Zealand law applies and the New Zealand courts have jurisdiction.

By signing, each of us confirms we have read this agreement and agree to it.

Performer

SIGNATURE

NAME DATE

Atmos Media

SIGNATURE

NAME AND ROLE DATE